

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
Michael Estime,

:

:

Index Number:

Date Purchased:

:

Date Filed:

Plaintiffs

:

SUMMONS

-against-

:

City of New York, New York City Police Department,  
New York City Police Officer William Garner, Shield  
20756 of the 44 Precinct and New York City Police  
Officers John Doe,

:

:

:

Plaintiff's residence is:

:

741 Clinton Avenue

Newark, NJ 07108

Defendants

:

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: March 27, 2016  
Bronx, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC  
Attorney for Plaintiff  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

To: City of New York

New York City Police Department

New York City Police Officer William Garner, Shield 20756 of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
Michael Estime,

Plaintiffs

-against-

City of New York, New York City Police Department,  
New York City Police Officer William Garner, Shield  
20756 of the 44 Precinct and New York City Police  
Officers John Doe

Defendants  
-----X

:  
:  
: VERIFIED COMPLAINT  
:  
:

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,  
alleges upon information and belief as follows:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Michael Estime, (hereinafter referred to as "ESTIME") resides in Essex County, State of New Jersey.
2. That at all times hereinafter mentioned, the New York City Police Officer William Garner, Shield 20756 of the 44 Precinct, (hereinafter referred to as "GARNER") were employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, involved in the arrest of Plaintiff (hereinafter referred to as "DOES") were employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or before about January 13, 2015 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. On or about July 20, 2015 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
8. That on or about January 4, 2015 at approximately 8:00PM in the vicinity of Nelson Avenue and West 164 Street, Bronx County, NY Plaintiff was driving his car when he was stopped by GARNER and DOES.
9. That at the time that Plaintiff was stopped he was not engaged in any unlawful or illegal behavior.
10. That GARNER and DOES requested that Plaintiff produce a valid license and valid registration for the vehicle Plaintiff was driving.
11. That Plaintiff produced valid registration.
12. That Plaintiff requested permission to go into the back seat to get his driver's license.

13. That before Plaintiff was permitted to get his driver's license form the back seat, GARNER requested that Plaintiff tell him his name and date of birth.
14. That Plaintiff gave GARNER his correct name and date of birth.
15. That Plaintiff then produced a valid driver's license which beared his correct name and date of birth and gave it to GARNER.
16. That GARNER handcuffed and arrested Plaintiff.
17. That at no time did Plaintiff provide an incorrect date of birth to GARNER.
18. That after Plaintiff was arrested he was removed to the 44 precinct.
19. That when Plaintiff arrived at the 44 precinct he was placed into a cell with other male prisoners.
20. That while at the 44 precinct, Plaintiff was subjected to harassment from the other male prisoners.
21. That while at the 44 precinct, Plaintiff was subjected to a strip search and that nothing of an illegal or unlawful nature was recovered.
22. That after being held for several hours in the 44 precinct, Plaintiff was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.
23. That on or about January 5, 2015, Plaintiff was arraigned in Bronx County Criminal Court on docket 2015BX000429, charging him with violating Penal Law section 190.23, False Personation.
24. That at the time of his arraignment, Plaintiff was released on his own recognizance.
25. That on June 5, 2015, Plaintiff made several court appearances until the case was dismissed upon application of the Bronx District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS**

26. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 27, as if more fully stated herein at length.
27. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
28. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
29. That as a result of the actions by Defendants Plaintiff was traumatized and fears for his physical safety when she sees and encounters members of the New York City Police Department from that day and onward.
30. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.
31. That as a result of the Defendants' actions, Plaintiff was forced to miss multiple days from work.
32. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS**

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.
34. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

35. Defendants having no lawful authority to arrest Plaintiff did, nevertheless, unlawfully arrest Plaintiff with actual malice toward her and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

**AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS**

36. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 35, as if more fully stated herein at length.

37. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. At all times pertinent hereto, GARNER and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that GARNER and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The City of New York and New York City Police Department's failure to provide adequate training and supervision to GARNER and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST DEFENDANTS**

46. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.



47. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

48. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

**On the first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

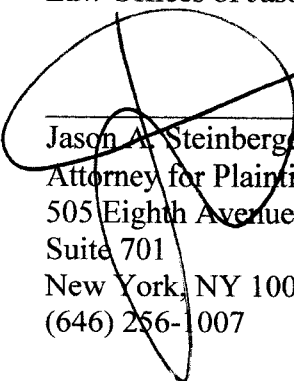
**On the fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the Defendants' wanton and willful actions;

**On the fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the seventh cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

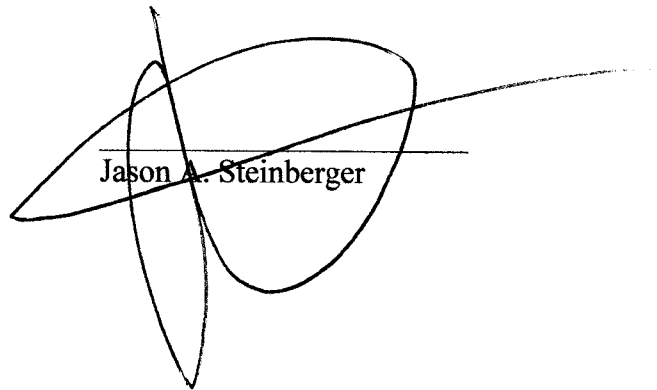


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Jason A. Steinberger, Esq.  
Attorney for Plaintiff  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: March 27, 2016



Jason A. Steinberger

**Index Number:**  
**SUPREME COURT OF THE STATE OF NEW YORK**  
**COUNTY OF BRONX**

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**MICHAEL ESTIME,**

Plaintiffs

**-against-**

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**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK  
CITY POLICE OFFICER WILLIAM GARNER, SHIELD 20756 OF THE 44 PRECINCT  
AND NEW YORK CITY POLICE OFFICERS JOHN DOE,**

Defendant.

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**SUMMONS AND COMPLAINT**

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**LAW OFFICES OF JASON A. STEINBERGER, LLC**  
505 Eighth Avenue  
Suite 701  
New York, NY 10018

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To:  
Attorney (s) for Defendant(s)

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Service of a copy of the within

is hereby admitted.

Dated:

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Attorney(s) for

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**PLEASE TAKE NOTICE**

☐ that the within is a (certified) true copy of  
☐ entered in the office of the clerk of the within named Court on

**NOTICE  
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.  
**NOTICE OF SETTLEMENT** at once of the Judges of the within named Court,

on 200 , at m.

Dated:

**JASON A. STEINBERGER, ESQ.**  
505 Eighth Avenue, Suite 701  
New York, NY 10018

To:  
Attorney(s) for